

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxvi.]
Order Confirmation (Southampton Extension) Act, 1920.



CHAPTER cxvi.

An Act to confirm a Provisional Order of the Minister of Health relating to Southampton. [4th August 1920.] A.D. 1920.

WHEREAS the Minister of Health has made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as altered and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force.

Order in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Southampton Extension) Act 1920.

Short title.

A.D. 1920.

SCHEDULE.

BOROUGH OF SOUTHAMPTON.

Southampton *Provisional Order made in pursuance of the Local Government*
Order. *Act 1888 for extending a County Borough.*

To the Mayor Aldermen and Burgesses of the Borough of Southampton ;—
To the Court of Quarter Sessions for the said Borough ;—
To the Justices of the Peace for the said Borough ;—
To the Justices of the Peace for the County of Southampton in Quarter Sessions assembled ;—
To the County Council of Southampton ;—
To the Urban District Council of Itchen ;—
To the Rural District Council of South Stoneham ;—
To the Guardians of the Poor of the South Stoneham Union ;—
To the Parish Councils of Bitterne North Stoneham South Stoneham and West End ;—
To the Overseers of the Poor of the Parishes of Bitterne Itchen North Stoneham South Stoneham and West End ;—
And to all others whom it may concern.

51 & 52 Vict. c 41. WHEREAS by virtue of Section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a Provisional Order for altering the boundary of any Borough and by such Order to divide or alter any electoral division ;

And whereas the Borough of Southampton is a County of itself and a County Borough within the meaning of the Local Government Act 1888 and is for the purposes of that Act situate in the County of Hants and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Southampton and act by the Council of the said Borough which now consists of the Mayor (who is also an Alderman) twelve other Aldermen and thirty-nine Councillors and the said Borough is for the purposes of the election of Councillors divided into thirteen wards ;

And whereas the said Borough is co-extensive with the Parish of Southampton and is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council are the Urban Sanitary Authority ;

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And whereas the said Borough has a separate court of quarter sessions commission of the peace police force recorder sheriff and coroner ;

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And whereas in pursuance of the Education Act 1902 the council of the said Borough are the local education authority ;

2 Edw. 7.
 c. 42.

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the Schedule to this Order and of the Confirmation Acts specified in Part II. of the said Schedule so far as the last-mentioned Acts relate to the Orders specified in that Schedule are in force in the said Borough ;

And whereas the provisions of—

(a) The Infectious Disease (Prevention) Act 1890 ;

53 & 54 Vict.
 c. 34.

(b) Parts II. III. and V. of the Public Health Acts Amendment Act 1890 ;

53 & 54 Vict.
 c. 59.

(c) The Museums and Gymnasiums Act 1891 ;

54 & 55 Vict.
 c. 22.

(d) The Private Street Works Act 1892 ;

55 & 56 Vict.
 c. 57.

(e) The Baths and Washhouses Acts 1846 to 1899 ; and

9 & 10 Vict. c. 74.
 10 & 11 Vict. c. 61.
 41 & 42 Vict. c. 14.
 45 & 46 Vict. c. 30.
 59 & 60 Vict. c. 59.
 62 & 63 Vict. c. 29.
 55 & 56 Vict. c. 53.
 56 Vict. c. 11.
 1 Edw. 7. c. 19.

(f) The Public Libraries Acts 1892 to 1919 ;

are in force in the said Borough ;

And whereas the Council of the said Borough are the authority for the execution of the Burial Acts 1852 to 1906 within the Borough ;

15 & 16 Vict. c. 85.
 6 Edw. 7. c. 44.

And whereas the Urban District of Itchen in the Administrative County of Southampton immediately adjoins the said Borough and is co-extensive with the Parish of Itchen and is subject to the jurisdiction of the Urban District Council of Itchen ;

And whereas the provisions of—

(a) The Infectious Disease (Prevention) Act 1890 ;

(b) Sections 16 to 19 21 to 38 and 47 to 49 of the Public Health Acts Amendment Act 1890 ; and

(c) The Private Street Works Act 1892 ;

are in force in the Urban District of Itchen ;

And whereas the Urban District Council of Itchen are the authority for the execution of the Burial Acts 1852 to 1906 for an area which forms part of the Urban District of Itchen ;

And whereas the Parishes of Bitterne North Stoneham and South Stoneham in the Administrative County of Southampton immediately

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Southampton District of South Stoneham subject to the jurisdiction of the Rural
Order. District Council of South Stoneham and two Rural District Councillors
are elected for each of the Parishes of Bitterne and North Stoneham
and one Rural District Councillor is elected for the Parish of South
Stoneham ;

And whereas the provisions of the Infectious Disease (Prevention)
Act 1890 and the provisions of Part III. of the Public Health Acts
Amendment Act 1890 which are applicable to Rural Districts are in
force in the said Rural District ;

56 & 57 Vict.
c. 73. And whereas the Parishes of Bitterne North Stoneham and
South Stoneham are rural parishes within the meaning of the Local
Government Act 1894 for each of which a Parish Council has been
established ;

And whereas the Parish Council for the said Parish of South
Stoneham is the authority for the execution of the Burial Acts 1852
to 1906 in that parish ;

And whereas the Parishes of Bitterne Itchen North Stoneham and
South Stoneham are included in the South Stoneham Union and
the Board of Guardians of that Union consists of twenty-one elective
guardians four guardians are elected for the Parish of Itchen and the
Rural District Councillors elected respectively for the Parishes of
Bitterne North Stoneham and South Stoneham are the representatives
of those parishes on that Board of Guardians ;

And whereas the Parish of West End is a Rural Parish for which
a Parish Council is elected comprised in the South Stoneham Union
and the Rural District of South Stoneham ;

And whereas in pursuance of the Education Act 1902 the Parishes
of Bitterne Itchen North Stoneham and South Stoneham form part
of the area of the County Council of the Administrative County of
Southampton as the local education authority ;

And whereas by virtue of an Order of the Local Government
Board dated the Fourteenth day of August One thousand eight hundred
and eighty-eight as altered by certain Provisional Orders (which were
duly confirmed by Parliament) and by certain other Orders made by
that Board and the Minister of Health the number of County Councillors
for the Administrative County of Southampton is sixty-four and the
Parishes of Bitterne South Stoneham and West End are included
in the South Stoneham Electoral Division of that County the Parish of
North Stoneham is included in the Millbrook Electoral Division of that
County part of the Parish of Itchen forms the Itchen (Pear Tree) Electoral

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Division of that County and the remaining part of the Parish of Itchen forms the Itchen (Sholing and Woolston) Electoral Division of that County : A.D. 1920.
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Order.

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Government Act 1888 and by all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:— 51 & 52 Vict.
c. 41.

Art. I. In this Order—

Definitions.

- (1) The expression "the Minister" means the Minister of Health ;
- (2) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred and twenty ;
- (3) The expression "the existing Borough" means the Borough of Southampton, as it existed immediately prior to the commencement of this Order ;
- (4) The expression "the Borough" means the existing Borough as extended by this Order ;
- (5) The expression "the Corporation" means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council ;
- (6) The expressions "the County" and "the County Council" mean respectively the Administrative County of Southampton and the County Council of that County ;
- (7) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Southampton as extended 1920" and sealed with the official seal of the Minister ;
- (8) The expression "the Ward maps" means the two maps each marked "Map of the additional Wards of the Borough of Southampton 1920" and sealed with the official seal of the Minister ;
- (9) The expressions "the Urban District" and "the Urban Council" mean respectively the Urban District of Itchen the area whereof is coloured yellow on the Borough maps and the Urban District Council of that District ;
- (10) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of South Stoneham and the Rural District Council of that District ;
- (11) The expression "the added areas" means the Urban District and the parts of the Rural District added to the existing Borough by this Order ;

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- (12) The expression "the added part of North Stoneham" means the part of the Parish of North Stoneham which is coloured blue on the Borough maps the expression "the excluded part of North Stoneham" means the remaining part of that parish the expression "the added part of South Stoneham" means the part of the Parish of South Stoneham which is coloured brown on the Borough maps and the expression "the excluded part of South Stoneham" means the remaining part of that parish;
- (13) The expressions "the existing Parish of North Stoneham" "the existing Parish of South Stoneham" and "the existing Parish of West End" mean in each case the parish as it existed immediately prior to the commencement of this Order and the expressions "the Parish of North Stoneham" and "the Parish of West End" mean in each case the parish as altered by this Order;
- (14) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (15) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (16) The expression "the Burial Acts" means the Burial Acts 1852 to 1906;
- (17) The expression "the Act of 1907" means the Public Health Acts Amendment Act 1907.

Commence-
ment of
Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and twenty:

Date of
operation of
Order for
elections &c.

Provided that for the purposes of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and twenty and of the revision of the basis or standard of the county rate of the County this Order shall operate from the date of the Act of Parliament confirming this Order:

Date of ope-
ration for
purposes of
certain
grants and

Provided also that for the purposes of Sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 as amended by Section 17 of the

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Finance Act 1907 Section 6 of the Finance Act 1908 Section 88 of the Finance (1909-10) Act 1910 the Revenue Act 1911 and any subsequent Act and as affected by any Order in Council made under Section 6 of the Finance Act 1908 the existing Borough shall be deemed not to have been altered and the added areas shall be deemed to continue part of the County until after the Thirty-first day of March One thousand nine hundred and twenty-one.

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Order.
 Local Taxa-
 tion Licences.
 53 & 54 Vict.
 c. 60.
 7 Edw. 7. c. 16.
 8 Edw. 7. c. 16.
 10 Edw. 7. c. 8.
 1 Geo. 5. c. 2.
 Extension
 of Borough.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the Urban District and so much of the Rural District as comprises the existing Parish of Bitterne the area whereof is coloured green on the Borough maps the added part of North Stoneham and the added part of South Stoneham.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough and also the County of the Borough of Southampton and shall be the County Borough for the purposes of the Act of 1888.

Art. IV.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Minister and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Postmaster-General to the Board of Trade to the Minister of Agriculture and Fisheries to the Minister of Transport and to the Electricity Commissioners and a copy of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Minister of Agriculture and Fisheries.

Deposit of
 maps.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the said map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation All fees so received shall be carried to the credit of the borough fund.

Copies of
 map to be
 evidence.

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A.D. 1920.	Art. V.—(1) For the purposes of any Commission of assize oyer and terminer or gaol delivery the service of juries the making of jury lists sheriff lieutenant militia and territorial force the added areas shall form part of the County of the Borough of Southampton.
<i>Southampton Order.</i> Powers and duties of justices &c. extended.	(2) The powers and duties of the quarter sessions recorder sheriff coroner and clerk of the peace of the existing Borough of the justices of the peace appointed for the existing Borough and of the clerk to those justices and of the police constables and other peace officers of the existing Borough shall extend to and apply throughout the Borough: Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made: Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices or coroner in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.
Transfer of lists of prisoners &c.	(3) Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connexion with any action or proceeding pending or existing at the commencement of this Order and appertaining to the added areas shall be delivered turned over or transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office in like manner as if the sheriff of the Borough were as respects the added areas the new sheriff in succession to the sheriff of the County.
Qualification of members of borough councils. 4 & 5 Geo. 5. c. 21.	Art. VI. For the purposes of the application to the Borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added areas shall be deemed to have always formed part of the Borough.
Number of Councillors and Aldermen.	Art. VII. The number of Councillors of the Borough shall be increased from thirty-nine to fifty-one and the number of Aldermen of the Borough shall be increased from thirteen to seventeen.
Division into wards.	Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:— (1) For the purposes of the election of Councillors the Borough shall be divided into seventeen wards:

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- (2) The thirteen existing wards and the number of Councillors respectively apportioned thereto shall remain unaltered : A.D. 1920.
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Order.
Constitution
of new wards.
- (3) The added areas shall be formed into four new wards named respectively the No. 14 Bitterne and Peartree Ward comprising that part of the Borough which is coloured blue on the Ward maps the No. 15 Bitterne and Sholing Ward comprising that part of the Borough which is coloured brown on the Ward maps the No. 16 Woolston Ward comprising that part of the Borough which is coloured green on the Ward maps and the No. 17 Saint Nicholas Ward comprising that part of the Borough which is coloured yellow on the Ward maps :
- (4) Three councillors shall be assigned to each of the Wards constituted by subdivision (3) of this Article.

Art. IX. The first election of Councillors for the four new wards constituted by this Order shall be held on the First day of November One thousand nine hundred and twenty and the Mayor of the existing Borough or some other person appointed by him shall be the returning officer at the election for those wards The first election of the four additional Aldermen of the Borough shall take place on the Ninth day of November One thousand nine hundred and twenty and of the four additional Aldermen then to be elected one shall be chosen from among the Councillors elected for the No. 14 Bitterne and Peartree Ward one from among the Councillors elected for the No. 15 Bitterne and Sholing Ward one from among the Councillors elected for the No. 16 Woolston Ward and one from among the Councillors elected for the No. 17 Saint Nicholas Ward or in each case from among the persons qualified to be Councillors whose qualifying property is situate in the ward. First election
of Council-
lors for new
wards and
additional
Aldermen.

Art. X.—(1) The Councillors elected for the Borough in the year One thousand nine hundred and twenty for the four new wards constituted by this Order shall retire as follows:— Retirement
of Council-
lors for new
wards and
additional
Aldermen
elected in
1920.

- (a) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and twenty-one :
- (b) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and twenty-three :
- (c) The other Councillor for each ward on the First day of November One thousand nine hundred and twenty-two.

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(2) The four additional Aldermen elected for the Borough in the year One thousand nine hundred and twenty in pursuance of this Order shall retire as follows:—

(a) The two additional Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and twenty-three:

(b) The other two additional Aldermen on the Ninth day of November One thousand nine hundred and twenty-six:

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred and twenty or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

*Local Acts
and Orders.*

Art. XI.—(1) The Electric Lighting Orders Confirmation (No. 1) Act 1913 so far as it relates to the Itchen Electric Lighting Order 1913 shall be repealed.

(2) Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof:

Provided as follows:—

(a) The provisions of the Southampton Water Works Act 1836 or of any other Local Act or Order passed or confirmed before the commencement of this Order relating to the water undertaking of the Corporation or the supply of water by the Corporation shall not extend or apply to or within any part of the limits of supply of the South Hants Water Works Company but nothing herein contained shall prevent the Corporation from taking water in the Parish of Otterbourne or elsewhere from the works authorised by the Southampton Corporation Act 1885:

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- (b) Nothing in this Order contained shall affect the limits of supply of the South Hants Water Works Company as defined by Section 4 of the South Hants Water Works Act 1876 Section 5 of the South Hants Water Act 1878 Section 4 of the South Hants Water Act 1894 and Section 19 of the South Hants Water Act 1899 or authorise or enable the Corporation to supply water within such limits.

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Order.*

Art. XII. Subject to the provisions of this Order—

Byelaws &c.

- (1) All byelaws orders and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws or orders or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed:
- (2) All byelaws orders and regulations made by the County Council or the Urban Council or the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Council of the District in which the part is situated or have been sent to the surveyor or clerk to that Council one month at least before that date and have not been disapproved by the Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Council of the District in which the part is situated and that District. Provided that any proceedings which if this Order had not been made might have been taken by the County Council or the Urban Council or the Rural Council for any offence committed before the commencement of this Order against any byelaws orders and regulations which by virtue of this subdivision cease to be in force may be taken by the Corporation as if those byelaws orders and regulations had remained in force and the Corporation had been substituted therein for that Council.

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Town clerk
and other
officers con-
tinued.

Compensa-
tion to exist-
ing officers.

Art. XIII. The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Art. XIV.—(1) The provisions of subsection (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Urban Council with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation.

(2) Every clerk to justices and coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County or of or paid by the Police Authority for the joint police force for the County and the County Borough of Bournemouth and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of subdivision (1) of this Article regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(3) For the purposes of subdivision (2) of this Article any clerk to justices coroner or officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the County Council or the Standing Joint Committee of the County or the Police Authority for the joint police force for the County and the County Borough of Bournemouth or any other authority including the Corporation within

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five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

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 Order.*

(4) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Art. XV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Urban Council or by or against the Rural Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Actions &c.
 not to abate.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Urban Council or by the Rural Council or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Urban Council or the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Saving for
 contracts &c.

Art. XVI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Corporation
 property &c.

Art. XVII. The Urban Council shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Liquidation of
 current debts
 and liabilities
 by Urban
 Council.

Art. XVIII. Subject to the provisions of this Order—

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Urban Council and all property and liabilities which

Property &c.
 of Urban
 and Rural
 Councils.

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immediately before the said date are vested in or attach to the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban Sanitary Authority and any property and liabilities vested in or attaching to the Rural Council in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888:

Abolition of
Urban Coun-
cil and cesser
of jurisdic-
tion of Rural
Council.

Arrears of
rates &c.

(2) The Urban Council shall at the commencement of this Order be abolished and cease to exist and the Rural Council shall cease to exercise any powers or have any duties within any part of the added areas:

(3)—(a) All arrears of rates made by the Urban Council and all other payments which at the commencement of this Order are due or owing to the Urban Council may be collected and recovered by the Corporation;

(b) All arrears of rates made by the Overseers of the existing Parishes of Bitterne North Stoneham and South Stoneham for the purposes of the Public Health Acts or for highway expenses which at the commencement of this Order are due or owing in respect of hereditaments in any part of the added areas may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied and the balances (if any) shall be paid to the Corporation:

Adjustment
of balances.

(4) Any balances in the hands of the Overseers of the Parishes of North Stoneham and South Stoneham at or immediately before the commencement of this Order and any sum collected after that date by Overseers of the Poor in respect of any rate made before that date and levied upon any rateable hereditament in the existing Parish of South Stoneham or the added part of North Stoneham shall be a matter for adjustment under Section 62 of the Act of 1888:

Adaptation
of provisions
as to adjust-
ment.

(5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that Section shall have effect as if in subsections (5) (6) and (7) thereof the expression "council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not

otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction:

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Order.

- (6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the abolition or the alteration of the area of any existing parish that section shall have effect—

(a) as if the Overseers of the parishes of North Stoneham Saint Nicholas and West End and the persons who immediately before the commencement of this Order were the Overseers of the Parish of South Stoneham or if the circumstances of the case so require any persons who may be substituted for those persons by an order of the Minister were within the meaning of the said section as applied by this Article authorities affected by this Order;

(b) as if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section; and

(c) as if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended (that is to say):—

“ (6) If it is necessary for the purpose of giving
“ effect to any agreement or award for an adjust-
“ ment that a separate rate shall be levied in part
“ of a parish only the agreement or award may
“ authorise the making of such a separate rate as
“ if it were a poor rate and as if the part of the
“ parish on which it is to be levied were a whole
“ parish.”

“ (7) Any capital sum paid for the purposes of any
“ adjustment or in pursuance of any order or award
“ of an arbitrator shall be applied by such person in
“ such manner and for such purpose as the Minister
“ of Health may authorise or direct.”

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Mortgage
debts of
Urban Coun-
cil Rural
Council
Parish Coun-
cil and Cor-
poration.

Art. XIX.—(1) The liability for repayment of any moneys borrowed by the Urban Council or by the Parish Council of the existing Parish of South Stoneham for the purposes of the Burial Acts or by the Rural Council for the purposes of sewerage and the disposal of sewage of the Parish of Bitterne the added part of North Stoneham and the added part of South Stoneham or of so much of any of those moneys as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred to and attach to the Corporation.

(2) Subject as hereinafter provided so much as will at the commencement of this Order be outstanding in respect of the moneys borrowed as aforesaid by the Urban Council or by the Rural Council together with so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing Borough shall by virtue of this Order be charged upon the district fund and general district rate of the Borough so much as will at the commencement of this Order be outstanding in respect of the moneys borrowed as aforesaid by the Parish Council of South Stoneham together with so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon any other rate levied within the existing Borough shall be charged upon the corresponding rate to be levied in the Borough:

Provided that as from the commencement of this Order the rate in the nature of a general district rate to be made and levied in pursuance of subdivision (2) of Article XXI. of the Southampton Order 1895 shall be made and levied upon the areas added to the existing Borough by this Order in addition to the area which constituted the Borough of Southampton as it existed before the commencement of the said Order of 1895.

(3) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

(4) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which shall be transferred to the Corporation in pursuance of subdivision (1) of this Article or

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxvi.]
Order Confirmation (Southampton Extension) Act, 1920.

the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate of the Borough or the borough rate as the case may require shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

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Order.

Art. XX. The provisions of the Infectious Disease (Prevention) Act 1890 Parts II. III. and V. of the Public Health Acts Amendment Act 1890 the Museums and Gymnasiums Act 1891 the Private Street Works Act 1892 the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 to 1919 shall be in force in and apply to the Borough as if the same had been adopted for the Borough.

Adoptive
 Acts.

Art. XXI. Subject to the provisions of any order which the Minister or the Secretary of State may make after the commencement of this Order—

(1) The provisions of any order made by the Local Government Board or the Minister before the commencement of this Order under Section 33 or Section 34 of the Act of 1894 shall be deemed to have effect as if any reference in those provisions to the existing Borough and the Parish of Southampton extended and applied to the Borough and the Parishes of Bitterne Itchen and Saint Nicholas; and

Powers under
 sections 33
 and 34 of
 Act of 1894.

(2) The provisions of any order made by the Local Government Board or the Minister or by the Secretary of State before the commencement of this Order and declaring to be in force in the existing Borough any Parts or Sections of the Act of 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Borough extended and applied to the Borough and as if the said Parts and Sections were accordingly declared to be in force in the Borough.

Powers un-
 der Public
 Health Acts
 Amendment
 Act 1907.
 7 Edw. 7.
 c. 53.

3 The provisions of any order made by the Local Government Board or by the Secretary of State before the commencement of this Order whereby any Parts or Sections of the Act of 1907 are in force in any part of the added areas shall cease to apply to those areas and subject to the provisions of this Article the Parts and Sections declared by any such order to be in force shall cease to be in force in any part of the added areas:

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Order.*

Provided that nothing in this subdivision shall—

- (a) affect the operation prior to the commencement of this Order of any such provisions or anything duly done or suffered thereunder ; or
- (b) affect any right privilege obligation or liability acquired accrued or incurred under any such provisions ; or
- (c) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any such provisions ; or
- (d) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid.

Orders made
under Shop
Hours Act 1904
and Shops
Act 1912.
4 Edw. 7.
c. 31.
2 Geo. 5. c. 3.

Art. XXII. Any order made under the Shop Hours Act 1904 the Shops Act 1912 or any other Act providing for the closing of shops and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of any of the above Acts remain in force and apply to the area to which it applied immediately before the commencement of this Order.

Transfer of
public ele-
mentary
schools &c. to
Corporation.

Art. XXIII. For the purposes and subject to the provisions of the Education Acts 1870 to 1919—

- (1) All public elementary schools (including the sites and school-houses) provided by the local education authority and situate in the added areas and the furniture fittings books and apparatus belonging to the County Council of any public elementary school in the added areas shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority :
- (2) All contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of any public elementary school in the added areas or of the furniture fittings books or apparatus or with respect to the officers teachers and servants of any public elementary school in the added areas shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority :
- (3) Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of subdivisions (1) and (2) of this Article :

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxvi.]
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- (4) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) or of the furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:
- (5) In the foregoing provisions of this Article the expression "public elementary school" includes any land acquired and held by the County Council as the local education authority for purposes of elementary education:
- (6) Any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force:
- (7) Any managers of any public elementary school in the added areas who were appointed by the County Council or by the Urban Council or any Parish Council shall vacate office at the commencement of this Order.

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Southampton
Order.

Mortgage
 debts in
 respect of
 transferred
 schools.

Education
 byelaws.

Managers.

Art. XXIV.—(1) The Corporation shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts Provided that no approval sanction or authorisation of the vestry of any of the Parishes of Southampton Bitterne Itchen or Saint Nicholas shall be required in respect of any act of the Corporation as the Burial Board as aforesaid.

Corporation
 to be Burial
 Board for
 Borough.

(2) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Urban Council as the authority for the execution of the Burial Acts within part of the Urban District shall by virtue of this Order vest in and be transferred and attach to the Corporation as the Burial Board for the Borough.

Transfer of
 property and
 liabilities.

[Ch. cxvi.] *Ministry of Health Provisional [10 & 11 GEO. 5.]
Order Confirmation (Southampton Extension) Act, 1920.*

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*Southampton
Order.*

(3) Subject to any adjustment that may be made between the Corporation and the Parish Council of the Parish of West End all property and liabilities which immediately before the commencement of this Order are vested in or attach to the Parish Council of the existing Parish of South Stoneham as the authority for the execution of the Burial Acts in the existing Parish of South Stoneham shall by virtue of this Order vest in and be transferred and attach to the Corporation as the Burial Board for the Borough.

*Saving rights
of burial.*

(4) The present sole and exclusive rights of the parishioners and inhabitants of the existing Parish of South Stoneham of burial in the burial ground belonging to that parish as it now exists shall not be altered but shall continue as if this Order had not been made and the burial charges to such parishioners and inhabitants in respect of that burial ground shall be the same as may be made for the interment therein of persons resident in the added part of South Stoneham.

(5) In relation to any burial ground provided by the Urban Council or the Parish Council of South Stoneham or their predecessors:—

Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a parishioner an inhabitant or any other person has had or acquired before the commencement of this Order; and

Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order will be exerciseable by or attach to any incumbent or sexton under the Burial Acts.

*Burial fees
&c.*

(6) Subject to the provisions of the Burial Act 1900 all fees payments and sums fixed and settled and receivable by the Urban Council or the Parish Council of the existing Parish of South Stoneham as the authority in either case for the execution of the Burial Acts immediately prior to the commencement of this Order shall thenceforth be receivable by the Corporation acting as a Burial Board until or except in so far as any such fees payments or sums may be altered or varied in pursuance of the statutory provisions in that behalf.

*Cessation of
Burial Acts.*

(7) Except so far as is necessary for any purpose of this Article the Burial Acts shall cease to apply and have effect by virtue of any adoption before the commencement of this Order in relation to the existing Parish of South Stoneham.

*County
police.*

Art. XXV.—(1) At the commencement of this Order such number of the members of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxvi.]
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Act of Parliament confirming this Order between the Police Authority for the joint police force for the County and the County Borough of Bournemouth and the Watch Committee of the existing Borough or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the Borough. Provided that no member of the police force of the County shall be transferred to or become a member of the police force of the Borough under this subdivision unless such member consents to be so transferred.

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—
Southampton
Order.

(2) Every member of the county police force so transferred shall hold office in the police force of the Borough upon the same tenure and upon the same terms and conditions as he would have held office in the county police force if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he may be entitled shall not be less than they would have been if this Order had not been made.

(3) The provisions of Section 15 (2) of the Police Act 1890 as amended by any subsequent Act shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the joint police force for the County and the County Borough of Bournemouth notwithstanding that at the date of this transfer such member may not have served in such joint police force for the minimum period prescribed by Section 4 (4) of the Police Act 1890 as amended by the Police Superannuation Act 1908.

53 & 54 Vict.
c. 45.

(4) All the county police stations situate in any part of the added areas with the residences for constables and cells connected therewith and the fittings and furniture thereof respectively shall by virtue of this Order be transferred to and vest in the Corporation as from the commencement of this Order for all the estate and interest therein of the County Council and there shall be paid by the Corporation to the County Council out of the borough fund in consideration of such transfer such sums as shall be agreed upon or as in default of agreement shall be settled by arbitration in manner provided by the Act of 1888.

Countypolice
stations.

(5) In the event of the amount of the consideration for the transfer of the property which by virtue of subdivision (4) of this Article is transferred to and vested in the Corporation not being ascertained before the commencement of this Order the date of the final ascertainment of the consideration shall for the purposes of Section 12 of the Finance Act 1895 be treated as the date of vesting.

58 & 59 Vict.
c. 16,

[Ch. cxvi.] *Ministry of Health Provisional [10 & 11 GEO. 5.]
Order Confirmation (Southampton Extension) Act, 1920.*

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*Southampton
Order.*

Adjustment
of financial
relations
between
County
and County
Boroughs.

Art. XXVI.—(1) In any case where the extension of the existing Borough by this Order affects the distribution of the proceeds of the local taxation licences or of the estate duty grant or of the Local Taxation (Customs and Excise) duties between the County and the Borough or between the County and the Borough on the one hand and any other County Borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or questions equitable adjustments may be made between the areas interested:

For the purposes of this subdivision or of anything done or to be done in pursuance of this subdivision any reference in the said subdivision to the proceeds of licences or duties shall include a reference to the sums which in pursuance of subsection (4) of Section 17 of the Finance Act 1907 as amended by Section 6 of the Finance Act 1908 and Section 88 of the Finance (1909-10) Act 1910 and the Revenue Act 1911 or of any subsequent Act have been paid or will be payable in lieu of those proceeds.

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the Borough the County and the County Borough affected and if such adjustment has not been made before the Thirtieth day of September One thousand nine hundred and twenty-one then on the application of any of the Councils interested the Minister may if he thinks fit make the adjustment or appoint an arbitrator to make it.

(3) In any case in which an agreement for equitable adjustments as aforesaid has not been made the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Minister or an arbitrator appointed by him as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Minister be deemed to be made by him otherwise than as an arbitrator and any arbitrator appointed by him shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly:

Provided—

(a) that in lieu of subsection (6) of Section 61 of the Act of 1888 subsections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxvi.]
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by the Minister under this Article and to the costs of those inquiries ; and

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*Southampton
 Order.*

(b) that subsection (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

(4)—(a) An equitable adjustment shall be made between the County and the Borough respecting the interest of the added areas in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

Adjustment
 for purposes
 of Licensing
 (Consolida-
 tion) Act
 1910.

(b) Such adjustment shall be made by agreement between the Compensation Authority (as defined by the Licensing (Consolidation) Act 1910) for the County and for the Borough within twelve months from the commencement of this Order or in default of agreement by an arbitrator appointed by the Secretary of State.

10 Edw. 7.
 and 1 Geo. 5.
 c. 24.

(c) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

Art. XXVII.—(1) The Minister may at any time after the passing of the Act of Parliament confirming this Order by order make such provisions as appear to him to be necessary for transferring to the Insurance Committee for the Borough such of the property rights and liabilities of the Insurance Committee for the County as relate to persons resident in the added areas.

Insurance
 Committees.

(2) An order made under this Article may authorise the Insurance Committee for the County to continue to act as Insurance Committee for the added areas until such date not being later than the Thirty-first day of December One thousand nine hundred and twenty as may be specified in the order and may for that purpose postpone the operation of this Order so far as relates to the rights and duties of the respective Insurance Committees for the County and Borough until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient.

(3) An order under this Article shall have effect as if enacted in the National Insurance Act 1911 and may be revoked revised or amended by an order made in like manner as the original order.

(4) The persons who immediately before the commencement of this Order are members of the respective Insurance Committees for the County and Borough shall be deemed to have been appointed or elected and shall be the members of the respective Insurance Committees for the County and Borough as altered by this Order.

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Southampton
Order.
 Electoral
 Divisions
 and County
 Councillors.

Art. XXVIII.—Subject to the provisions of Section 54 of the Act of 1888—

- (1) The number of County Councillors for the County shall be reduced from sixty-four to sixty-one and the said Order dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered as aforesaid shall be further altered accordingly :
- (2) The Itchen (Pear Tree) Electoral Division the Itchen (Sholing and Woolston) Electoral Division and the South Stoneham Electoral Division of the County shall be abolished and the persons who immediately before the commencement of this Order are the County Councillors representing those Electoral Divisions shall cease to hold office :
- (3) The Millbrook Electoral Division of the County as diminished by the inclusion in the Borough of the added part of North Stoneham shall be further altered by the addition thereto of the excluded part of South Stoneham and the Parish of West End and the person who immediately before the commencement of this Order is the County Councillor representing the Millbrook Electoral Division shall continue to represent that division as if he had been originally elected to represent that division as hereby altered :
- (4) Notwithstanding anything in this Order the number of Aldermen for the County shall remain unaltered until the ordinary day of election of Aldermen next following the commencement of this Order but at that election ten Aldermen only shall be elected in place of those who then go out of office :

Provided that in the event of any casual vacancy or vacancies occurring prior to the said day in the office of Alderman the term of which would have expired on such day the first of such casual vacancies shall not be filled :

- (5) Subject as provided in this Article no County Alderman or County Councillor in office immediately before the commencement of this Order shall be deemed to lose his qualification by reason of the alterations effected by this Order.

Parochial
 alterations.

Art. XXIX.—(1) The excluded part of South Stoneham shall be amalgamated with the existing Parish of West End.

(2) The added part of North Stoneham shall be separated from the existing Parish of North Stoneham and shall be amalgamated with the added part of South Stoneham to form a separate parish for all lay and civil purposes to be called the Parish of Saint Nicholas.

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxvi.]
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(3) The Parish of Saint Nicholas shall be included in and form part of the South Stoneham Union and all Orders in force immediately before the commencement of this Order and applicable to the several parishes in that Union shall apply to the Parish of Saint Nicholas.

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Southampton
Order.

Art. XXX. All the powers rights duties capacities liabilities and obligations of an Urban District Council and all the powers in relation to the chargeability of expenses with which the Rural Council are invested in pursuance of any order issued by the Local Government Board or by the Minister under the Public Health Acts in respect of either of the contributory places of North Stoneham or West End shall be deemed to vest in and attach to the Rural Council in respect of the contributory place as altered by this Order.

Urban
 powers &c.
 made appli-
 cable to
 excluded
 part of North
 Stoneham
 and West
 End.

Art. XXXI. Subject to the provisions of Section 60 of the Act of 1894 the following provisions shall have effect:—

Rural Dis-
 trict Coun-
 cillors and
 Guardians.

(1)—(a) Two Guardians of the Poor shall be assigned to the Parish of Saint Nicholas :

(b) The number of Rural District Councillors and Guardians for the Parish of North Stoneham shall be reduced to one and of the two persons who at the commencement of this Order are holding those offices for the existing Parish of North Stoneham one to be selected before the said date by the Rural Council shall cease to hold the said offices and the other person shall be deemed to have been elected and shall represent the Parish of North Stoneham upon the Rural Council and the Board of Guardians of the South Stoneham Union :

(c) The person who at the commencement of this Order is holding the office of Rural District Councillor and Guardian for the Parish of South Stoneham shall cease to be a member of the Rural Council but shall continue to be a member of the Board of Guardians of the South Stoneham Union and shall together with the person who in pursuance of paragraph (b) of this subdivision will cease to hold the offices of Rural District Councillor and Guardian for the Parish of North Stoneham be deemed to be the Guardians representing the Parish of Saint Nicholas upon the said Board of Guardians :

(2) The persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian for the existing Parish of Bitterne shall cease to hold the office of Rural District Councillor but shall continue to

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Order.

represent the said parish upon the Board of Guardians of the South Stoneham Union:

(3) The person who at the commencement of this Order is holding the offices of Rural District Councillor and Guardian for the existing Parish of West End shall be deemed to have been elected for the Parish of West End:

(4) Subject as herein-before mentioned all the persons affected by this Article shall continue in office until the date upon which they would have retired if this Order had not been made.

Parish
Councils.

Art. XXXII. Subject to the provisions of this Order—

(1) The Parish Council of the parish of Bitterne shall cease to exist and any powers and duties transferred by the Act of 1894 to that Parish Council shall be vested in and imposed on the persons and authorities in whom they would be vested or on whom they would be imposed if that parish had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the said parish for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid. Any property or liabilities of the said Parish Council held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall by virtue of this Order be transferred to and vest in and attach to the Corporation:

(2)—(a) The Parish Council of the existing Parish of South Stoneham shall cease to exist and any powers and duties transferred by the Act of 1894 to that Parish Council or to the Parish Council of North Stoneham shall so far as regards the added part of South Stoneham and the added part of North Stoneham be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the said added parts had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the said added parts for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxvi.]
Order Confirmation (Southampton Extension) Act, 1920.

in and attach to the persons and authorities aforesaid. A.D. 1920.
Any property or liabilities of the said Parish Councils held or incurred otherwise than by virtue or for the *Southampton*
purposes of the powers or duties aforesaid shall so far *Order.*
as regards the said added parts by virtue of this Order be transferred to and vest in and attach to the Corporation:

(b) Any property or liabilities of the Parish Council of South Stoneham other than property or liabilities transferred to the Corporation by virtue of subdivision (3) of Article XXIV. of this Order held or incurred so far as regards the excluded part of South Stoneham shall by virtue of this Order be transferred to and vest in and attach to the Parish Council of the Parish of West End:

(3) The Parish Councils of the existing Parish of North Stoneham and the existing Parish of West End shall be deemed to have been elected and shall be the Parish Councils for the Parish of North Stoneham and the Parish of West End respectively.

Art. XXXIII. The accounts of the Urban Council and of the Parish Councils of the Parishes of Bitterne and South Stoneham and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and subject to the like incidents and consequences as if this Order had not been made: *Audit of*
accounts of
Urban and
Parish Coun-
cils.

Provided that the audit may in each case be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor to be due from any person shall be paid to the treasurer of the Borough and shall if necessary be a matter for adjustment under Section 62 of the Act of 1888.

Art. XXXIV. Until new valuation lists are in force—

(1) The portions of the valuation lists of the existing Parishes of North Stoneham and South Stoneham which respectively relate to hereditaments in the added part of North Stoneham and the added part of South Stoneham shall together form and be deemed to be the valuation list of the Parish of Saint Nicholas: *Valuation*
lists.

(2) The remaining portion of the valuation list of the existing Parish of North Stoneham shall be deemed to be the valuation list of the Parish of North Stoneham and the remaining portion of the valuation list of the existing Parish of South Stoneham shall be deemed to form part of the valuation list of the Parish of West End.

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—
Southampton
Order.
County rate
basis.

Art. XXXV.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be altered—

- (a) by the omission therefrom of the amounts appearing in such basis or standard as the net annual value of the agricultural land and of the buildings and other hereditaments not being agricultural land respectively in each of the existing Parishes of Bitterne Itchen and South Stoneham;
- (b) by the deduction from the amounts appearing in such basis or standard as the net annual value of the agricultural land and of the buildings and other hereditaments not being agricultural land respectively in the existing Parish of North Stoneham of such sums as will represent respectively the net annual value of the agricultural land and of the buildings and other hereditaments not being agricultural land respectively in the added part of North Stoneham;
- (c) by the addition to the amounts appearing in such basis or standard as the net annual value of the agricultural land and of the buildings and other hereditaments not being agricultural land respectively in the existing Parish of West End of such sums as will represent respectively the net annual value of the agricultural land and of the buildings and other hereditaments not being agricultural land in the excluded part of South Stoneham.

(2) For the purposes of this Article the sums which shall represent the net annual value of the agricultural land in the added part of North Stoneham and the excluded part of South Stoneham respectively shall be such amounts as in relation to the amounts appearing in the basis or standard of county rate as the net annual value of the agricultural land in the Parishes of North Stoneham and South Stoneham respectively are in the same proportion as the rateable value of the agricultural land in the added part of North Stoneham and the excluded part of South Stoneham bear to the total rateable value of agricultural land in the Parishes of North Stoneham and South Stoneham respectively.

(3) For the purposes of this Article the sums which shall represent the net annual value of the buildings and other hereditaments not being agricultural land in the added part of North Stoneham and the excluded part of South Stoneham respectively shall be such amounts as in relation to the amounts appearing in the basis or standard of county rate as the net annual value of the buildings and other hereditaments not being agricultural land in the Parishes of North Stoneham and South Stoneham respectively are in the same proportion as the rateable value of the buildings and other hereditaments not being agricultural land in the added part of North Stoneham and the

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excluded part of South Stoneham respectively bear to the total rateable value of the buildings and other hereditaments not being agricultural land in the Parishes of North Stoneham and South Stoneham respectively.

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(4) For the purposes of this Article rateable value means the rateable value according to the valuation list at the commencement of this Order in force in the Parish of North Stoneham or the Parish of South Stoneham as the case may be.

(5) For the purpose of the revision of the county rate basis the Overseers of the Poor of the existing Parishes of North Stoneham and South Stoneham respectively shall furnish such particulars of the poor rate valuations of the hereditaments in the added part of North Stoneham and the excluded part of South Stoneham respectively as shall be required by the clerk of the County Council.

Art. XXXVI. For the purposes of the jury lists the parishes affected by this Order shall be deemed to continue unaltered until the next lists after the commencement of this Order come into force.

Saving for
existing
jury lists.

Art. XXXVII. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect (that is to say):—

Settlement
and removal
of the poor.

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing parishes of North Stoneham South Stoneham and West End by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

- (i) in the added part of North Stoneham; or
- (ii) in the added part of South Stoneham; or
- (iii) in the excluded part of North Stoneham; or
- (iv) in the excluded part of South Stoneham; or
- (v) in the existing Parish of West End;

shall be deemed to have acquired or to be in the course of acquiring in the first and second cases a settlement in the Parish of Saint Nicholas in the third case in the Parish of North Stoneham in the fourth and fifth cases a settlement in the Parish of West End and in each case as if the existing parish or the specified part of the existing parish were and had always been the parish or a part of the parish in which by virtue of this Article the person shall

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be deemed to have acquired or to be in the course of acquiring a settlement:

- (2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the South Stoneham Union by reason of residence in any of the areas mentioned in paragraphs (i) to (v) of subdivision (1) of this Article shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the parish in which by virtue of that subdivision he is deemed to have acquired or to be in the course of acquiring a settlement.

Balances in
 Guardians'
 accounts.

Art. XXXVIII. Any balances standing in the books of the Guardians of the Poor of the South Stoneham Union to the credit of the existing Parishes of North Stoneham and South Stoneham and any balances owing by any of those existing parishes at that date shall be a matter of adjustment under Section 62 of the Act of 1888.

Saving for
 contribution
 orders and
 precepts.

Art. XXXIX.—(1) Notwithstanding the alteration in the areas of the parishes effected by this Order all contribution orders made by the Guardians of the Poor of the South Stoneham Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Saving for
 County rates.

- (2) All rates and all orders and precepts relating thereto and to matters connected therewith made by the County Council before the commencement of this Order may be enforced collected and recovered as if this Order had not been made.

Arrears of
 rates.

Art. XL. All sums in respect of rates made by the Overseers of the Poor of the existing Parishes of North Stoneham and South Stoneham and due or owing at the commencement of this Order shall be collected and recovered in respect of the added part of North Stoneham and the added part of South Stoneham by the Overseers of the Poor of the Parish of Saint Nicholas and in respect of the excluded part of South Stoneham by the Overseers of the Poor of the Parish of West End.

Registration
 of electors.

Art. XLI.—(1) For the purposes of the register of local government electors of the Borough prepared next after the commencement of this Order in pursuance of the Representation of the People Act 1918 and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have formed part of the Borough as from the first day of the qualifying period for that register.

- (2) In the preparation of the autumn register for the year 1920 in pursuance of the Representation of the People Act 1918 so far as

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it relates to areas affected by this Order it shall be competent to the Registration Officer to frame the register in separate parts for each area which will constitute a registration unit from and after the commencement of this Order instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

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(3) If the register of local government electors for any local government electoral area affected by this Order and in force at the commencement of this Order is not so framed as to show the persons entitled to vote at an election to be held for any parish ward or other electoral division of the area the town clerk in the case of an election for a parish ward or electoral division within the Borough and the registration officer of the parliamentary county in the case of an election for a parish ward or electoral division outside the Borough shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election. It shall be the duty of the Overseers to render such assistance as may be required by the said town clerk or registration officer for the purpose of such alteration or re-arrangement.

(4) Where in the opinion of the Minister the circumstances so require the Minister may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Art. XLII. For the purpose of defraying any expenses under this Order which in the opinion of the Minister are properly chargeable to capital the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the borough fund and borough rate or the district fund and general district rate of the Borough for the purpose of securing the repayment of any moneys so borrowed and the interest thereon. Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Minister determine.

Borrowing
powers for
purposes of
Order.

Art. XLIII. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Ecclesiastical
divisions and
charities.

Art. XLIV. This Order may be cited as the Southampton (Extension) Order 1920.

Short title.

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The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Title.
6 & 7 Will. IV. c. xvi. - - -	The Southampton Waterworks Act 1836.
6 & 7 Vict. c. lxxvii. - - -	An Act to establish a cemetery for the interment of the Dead near the Town and within the Borough of Southampton.
7 & 8 Vict. c. liv. - - -	The Southampton Marsh Act 1844.
7 & 8 Vict. c. lxxv. - - -	An Act for paving lighting draining cleansing and otherwise improving the Town of Southampton and for removing and preventing Nuisances and Annoyances therein.
13 & 14 Vict. c. lx. - - -	The Southampton Waterworks Amendment Act 1850.
28 & 29 Vict. c. clxii. - - -	The Southampton Marsh and Markets Act 1865.
47 & 48 Vict. c. lix. - - -	The Southampton Corporation (Cemetery &c.) Act 1884.
48 & 49 Vict. c. clxx. - - -	The Southampton Corporation Act 1885.
60 & 61 Vict. c. cxxvi. - - -	The Southampton Corporation Tramways Act 1897.
10 Edw. 7. & 1 Geo. 5. c. cxiii. - - -	The Southampton Corporation Act 1910.
1 Geo. 5. c. v. - - -	The Southampton Corporation Tramways Act 1911.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Title.	Orders relating to Southampton thereby confirmed.
13 & 14 Vict. c. cviii.	The Public Health Supplemental Act 1850 (No. 3).	The Order dated the 15th day of July 1850.
29 & 30 Vict. c. cvii.	The Local Government Supplemental Act 1866 (No. 4).	The Order dated the 18th day of July 1866.
42 & 43 Vict. c. cv.	The Local Government Board's Provisional Orders Confirmation (Aspull &c.) Act 1879.	The Order dated the 2nd day of May 1879.
52 & 53 Vict. c. cxiii.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1889.	The Order dated the 26th day of July 1889.
54 & 55 Vict. c. cvii.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1891.	The Orders dated the 30th day of April 1891 and the 12th day of May 1891.
57 Vict. c. xxiii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1894.	The Order dated the 21st day of April 1894.
58 & 59 Vict. c. xciii.	The Local Government Board's Provisional Orders Confirmation (Housing of the Working Classes) Act 1895.	The Southampton (Housing of Working Classes) Order 1895.

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Session and Chapter.	Title.	Orders relating to Southampton thereby confirmed.	A.D. 1920. — <i>Southampton Order.</i>
58 & 59 Vict. c. cii.	The Electric Lighting Orders Confirmation (No. 5) Act 1895.	The Southampton Electric Lighting Order 1895.	
59 Vict. c. x.	The Local Government Board's Provisional Orders Confirmation (No. 16) Act 1895. Session 2.	The Southampton Order 1895.	
60 & 61 Vict. c. lxxviii.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1897.	The Southampton Order 1897.	
60 & 61 Vict. c. clxiii.	The Electric Lighting Orders Confirmation (No. 3) Act 1897.	The Southampton Electric Lighting Order 1897.	
62 Vict. c. xxviii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1899.	The Southampton Order 1899.	
63 & 64 Vict. c. cc.	The Tramways Orders Confirmation (No. 3) Act 1900.	The Southampton Corporation Tramways Order 1900.	
2 Edw. 7. c. lxx.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1902.	The Southampton Order 1902.	
2 Edw. 7. c. cciii.	The Tramways Orders Confirmation (No. 2) Act 1902.	The Southampton Corporation Tramways Order 1902.	
5 Edw. 7. c. cxiv.	The Tramways Orders Confirmation (No. 2) Act 1905.	The Southampton Corporation Tramways Order 1905.	
8 Edw. 7. c. cxv.	The Electric Lighting Orders Confirmation (No. 1) Act 1908.	The Southampton Electric Lighting Order 1908.	
9 Edw. 7. c. cxli.	The Electric Lighting Orders Confirmation (No. 1) Act 1909.	The Southampton Electric Lighting (Extension) Order 1909.	
4 & 5 Geo. 5. c. xlv.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1914.	The Southampton Order 1914.	
4 & 5 Geo. 5. c. cxxxiii.	The Local Government Board's Provisional Orders Confirmation (No. 13) Act 1914.	The Southampton Order (No. 2) 1914.	
5 & 6 Geo. 5. c. lxxxiii.	The Electric Lighting Orders Confirmation (No. 3) Act 1915.	The Southampton Electric Lighting (Extension) Order 1915.	

Given under the Official Seal of the Minister of Health this
Nineteenth day of May One thousand nine hundred and
twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

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